

**BEFORE THE FEDERAL MARITIME COMMISSION
WASHINGTON, D.C.**

BAL CONTAINER LINE CO., LIMITED	)	
	)	
	)	FMC Docket No. 23-11
	)	
Complainant,	)	
	)	
vs.	)	
	)	
SSA MARINE TERMINAL,	)	
SSA TERMINALS (PIER A), LLC	)	
SSA CONTAINERS, INC.	)	
	)	
Respondents.	)	
	)	

VERIFIED ANSWER

Respondents SSA MARINE TERMINAL, SSA TERMINALS (PIER A), LLC, and SSA CONTAINERS, INC. (collectively “SSA” or “Respondents”) hereby answer the Amended Complaint of Complainant BAL CONTAINER LINE CO., LIMITED (“Bal Container” or “Complainant”).

COMPLAINANT

1. SSA lacks sufficient information to admit or deny the allegations in paragraph 1.

RESPONDENTS

2. Deny the first and third sentences. Admit the second and fourth sentences. The fifth sentence requires no response. As to the sixth sentence, admit there is an employee of SSA Marine, Inc. named Tom Hsue and that Mr. Hsue’s email address is set forth correctly. As to the final sentence, SSA’s website speaks for itself.

3. Denied.

4. Denied.

5. SSA lacks sufficient information to admit or deny the allegations in paragraph 5 because the phrases “at least a substantial majority” and “inaccessible locations” are not defined and are vague and overly ambiguous.

6. Denied.

7. Admit that SSA Containers, Inc. and SSA Terminals (Pier A), LLC are marine terminal operators. Deny that SSA Marine Terminal is a marine terminal operator.

JURISDICTION & LEGAL AUTHORITY

8. Paragraph 8 states a legal conclusion to which no response is required. To the extent a response is required, SSA denies the allegations in paragraph 8.

9. Paragraph 9 states a legal conclusion to which no response is required. To the extent a response is required, SSA denies the allegations in paragraph 9.

10. Paragraph 10 states a legal conclusion to which no response is required. To the extent a response is required, SSA denies the allegations in paragraph 10.

11. Paragraph 11 states a legal conclusion to which no response is required. To the extent a response is required, SSA denies the allegations in paragraph 11.

FACTUAL ALLEGATIONS

12. Denied.

13. Admitted as to paragraph 13. Denied as to the footnote accompanying paragraph 13.

14. Admitted with respect to SSA Terminals (Pier A), LLC. Deny each and every allegation set forth in paragraph 14 with respect to SSA Marine Terminal and SSA Containers, Inc.

15. Admitted that four vessels of Bal Container called at SSA Terminals (Pier A), LLC's terminal in Long Beach between August 2021.

16. Admitted with respect to SSA Terminals (Pier A), LLC. Deny each and every allegation set forth in paragraph 16 with respect to SSA Marine Terminal and SSA Containers, Inc.

17. Admitted with respect to SSA Terminals (Pier A), LLC. Deny each and every allegation set forth in paragraph 17 with respect to SSA Marine Terminal and SSA Containers, Inc.

18. Admit that the total of the congestion surcharges billed to Bal Container was \$8,849,400. Deny that such surcharges stem solely from the calls of the four vessels.

19. Admitted with respect to SSA Terminals (Pier A), LLC. Deny each and every allegation set forth in paragraph 19 with respect to SSA Marine Terminal and SSA Containers, Inc.

20. Admitted with respect to SSA Terminals (Pier A), LLC. Deny each and every allegation set forth in paragraph 20 with respect to SSA Marine Terminal and SSA Containers, Inc.

21. Admitted with respect to SSA Terminals (Pier A), LLC. Deny each and every allegation set forth in paragraph 21 with respect to SSA Marine Terminal and SSA Containers, Inc.

22. Admitted with respect to SSA Terminals (Pier A), LLC. Deny each and every allegation in paragraph 22 with respect to SSA Marine Terminal and SSA Containers, Inc.

23. Admitted with respect to SSA Terminals (Pier A), LLC. Deny each and every allegation in paragraph 23 with respect to SSA Marine Terminal and SSA Containers, Inc.

24. Admitted with respect to SSA Terminals (Pier A), LLC. Deny each and every allegation in paragraph 24 with respect to SSA Marine Terminal and SSA Containers, Inc.

25. Admitted with respect to SSA Terminals (Pier A), LLC. Deny each and every allegation in paragraph 25 with respect to SSA Marine Terminal and SSA Containers, Inc.

26. Invoices 9430013584 and 9430013587 speak for themselves.

27. Denied.

28. Denied.

29. Paragraph 29 states a legal conclusion to which no response is required. In the event a response is required, the allegations in paragraph 29 are denied.

30. Denied.

31. Paragraph 31 states a legal conclusion to which no response is required. To the extent a response is required, the allegations in paragraph 31 are denied.

32. Paragraph 32 contains no factual allegations with respect to Respondents and thus requires no response.

33. Admit that SSA Containers, Inc. and SSA Terminals (Pier A), LLC are marine terminal operators. Deny that SSA Marine Terminal is a marine terminal operator.

34. Paragraph 34 states a legal conclusion to which no response is required. To the extent a response is required, the allegations in paragraph 34 are denied.

35. The first sentence states a legal conclusion to which no response is required. To the extent that a response to the first sentence is required, SSA Terminals (Pier A), LLC denies the allegations in the first sentence and denies that the congestion fee charge is related to handling of Bal Container's vessels and containers. Deny each and every other allegation set forth in paragraph 35 with respect to SSA Marine Terminal and SSA Containers, Inc.

36. Denied.

37. The first sentence states a legal conclusion to which no response is required. To the extent a response is required, the allegations in the first sentence are denied. The second sentence is denied.

38. Paragraph 38 states a legal conclusion to which no response is required. To the extent a response is required, the allegations in paragraph 38 are denied.

39. Paragraph 39 states a legal conclusion to which no response is required. To the extent a response is required, Respondents lack sufficient information to answer the allegations in paragraph 39 because the term "inaccessible" is undefined, vague, and overly ambiguous.

40. Denied.

41. Admit the Agreements do not identify any Tariff. Deny that failure to identify a Tariff is important and deny each and every other allegation set forth in paragraph 41 with respect to SSA Marine Terminal and SSA Containers, Inc.

42. Admit that eighteen containers are being held for non-payment of amounts due. Deny that such containers are being "wrongly" held.

43. Admit that a deposit of \$2,336,840.84 was received from Norton Lilly on amounts owed by Bal. Deny that such funds have been “wrongly seized” or that the holding of such funds constitutes a violation of the Shipping Act.

44. Admit that approximately \$5,400,000 of demurrage fees collected from third parties on behalf of Bal Container have been retained. Deny that such funds have been “wrongly seized” or that the holding of such funds constitutes a violation of the Shipping Act.

45. Denied.

CAUSATION

46. Denied.

47. Denied.

48. Denied.

49. Denied.

50. Denied.

51. Denied.

DAMAGES

52. Denied.

PRAYER FOR RELIEF

WHEREFORE, Respondents respectfully request that the Amended Complaint be dismissed with prejudice.

AFFIRMATIVE DEFENSES

1. Complainant fails to state a claim for which relief can be granted.

2. Complainant fails to state a claim for which relief can be granted with respect to SSA Marine Terminal because (a) there is no entity by that name; (b) SSA Marine Terminal is not a marine terminal operator subject to the Shipping Act; and/or (c) SSA Marine Terminal is not a party to the agreements pursuant to which the congestion surcharges were imposed.
3. Complainant fails to state a claim for which relief can be granted with respect to SSA Containers, Inc. because SSA Containers, Inc. is not a party to the agreements pursuant to which the congestion surcharges were imposed.
4. This Commission lacks subject matter jurisdiction over the matters alleged in the Amended Complaint.
5. Complainant's claims are barred, limited, and/or otherwise subject to the provisions contained in the Agreements governing the charges which are the subject of the Amended Complaint including, but not limited to, provisions relating to the exclusive means of dispute resolution.
6. SSA's conduct was neither unjust nor unreasonable.
7. SSA's conduct was not the proximate cause of Complainant's alleged injuries.

Respectfully submitted,

By: 

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Dated: January 9, 2024

VERIFICATION

VERIFICATION OF RESPONDENTS SSA TERMINALS (PIER A), LLC, AND SSA CONTAINERS, INC.

I, Matthew McCardell, hereby verify as follows:

1. I am General Counsel of SSA Containers, Inc.
2. I am authorized to make this verification on behalf of SSA Terminals (Pier A), LLC, and SSA Containers, Inc.
3. I declare under penalty of perjury under the laws of the United States that the foregoing answer is true and correct to the best of my knowledge, information, and belief.

Dated: January 9, 2024

A handwritten signature in black ink, appearing to read 'Matthew McCardell', written in a cursive style.

Name: Matthew McCardell
Title: General Counsel

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 9th day of January, 2024, a true and correct copy of the foregoing Answer was served on the following via electronic mail:

Bryce M. Cullinane, Esq. (bryce.cullinane@kyl.com)

Shahed Abualsamen, Esq. (shahed.abualsamen@kyl.com)

A handwritten signature in black ink, appearing to read "Wayne R. Rohde", written over a horizontal line.

Wayne R. Rohde